

Nityanand Prajapati v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 July 2014 · Criminal Misc. Writ Petition No. 12014 of 2014 · **s.135 FIR not quashed; CrPC 41-A directions; compounding via Supply Code**

HEADNOTE

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Arrest, if later effectuated for an offence not entailing more than seven years' imprisonment, must comply with CrPC s.41(1)(b) read with s.41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Nityanand Prajapati petitioned the Allahabad High Court to quash FIR dated 24 May 2014, Case Crime No. 160 of 2014, registered under Section 135 of the Electricity Act, 2003 at Police Station Mau Darwaja, District Farrukhabad. He had not been arrested. Counsel argued that the FIR should be quashed; that because the alleged offence could not attract a sentence exceeding seven years, arrest ought not to be mechanical; and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

FIR quash, arrest safeguards, and compounding

HOLDING

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. Arrest, if effectuated, must comply with CrPC s.41(1)(b) read with s.41-A where the offence will not entail a sentence of more than seven years. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Applied to a pending s.135 FIR where arrest had not been effectuated; quash refused and compounding left to the Supply Code if available. ¶ 1